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Provision of May 23, 2024
Register of provisions
No. 308 of May 23, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the inspection report drawn up by the Municipal Police Command and Civil
Protection of the Municipality of
Reggio Emilia, dated 03/24/2023, at the establishment
named "Green Land African Minimarket," located at
Viale IV Novembre No. 19/f, Reggio Emilia, which confirmed the presence of a
surveillance system, active and functioning, consisting of
two cameras, of which the external one framed
areas beyond those of strict
pertinence, and the internal one was suitable for
recording, in addition to customers, also the
employee personnel, in the absence of the obligations provided for
pursuant to Article 4 of Law No. 300/1970;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISE

1. The finding of the Municipal Police and the initiation
of the procedure.

With a note received on 06/30/2023 and registered on
07/03/2023, the Municipal Police Command and
Civil Protection of the Municipality of Reggio Emilia – transmitted to this Authority the report of the
inspection
carried out on 03/24/2023, by its
personnel, at the "neighborhood establishment"
named "Green Land African Minimarket," located at
Viale IV Novembre No. 19/f, Reggio Emilia, managed
by the sole proprietorship "Green Land African Market
Di Owe Amenze" (hereinafter "Business") of Owe Amenze, VAT No. 02981850353, with legal
headquarters at the same
address.

The report confirmed the presence, at the

aforementioned premises, of a surveillance system composed of 2 regularly functioning cameras.

The external camera was found to extend the framing to a wide part of the public road on which the store is located, including the sidewalk opposite to that on which the establishment is situated. The internal camera was found to be suitable for recording also the employee personnel, in the absence of the obligations provided for pursuant to Article 4 of Law No. 300/1970 (Workers' Statute). In this regard, it is noted that the owner of the establishment has declared to have an employee.

Based on the findings in the aforementioned report, a notification was therefore made to the Business, with a note dated 11/07/2023 (protocol No. 0150259.07/11/2023), regarding the initiation of the procedure for the adoption of the measures referred to in Articles 58, paragraph 2, and 83 of Regulation (EU) 2016/679 (hereinafter "Regulation"), in accordance with the provisions of

Article 166, paragraph 5, of Legislative Decree No. 196 of June 30, 2003 (hereinafter "Code").

Regarding the functionality of the external camera, the violation of the general principles concerning the protection of personal data referred to in Articles 5, paragraph 1, letter a) and 6 of the Regulation was contested, while in relation to the

internal camera, the violation of the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation in relation to Article 114 of the Code) and of Article 88 of the Regulation regarding the applicable discipline was contested.

Subsequent to the violations, the Business adopted a collaborative attitude and sent documentation from which it was possible to ascertain that it has removed the external camera that recorded areas of non-strict pertinence, updated the sign indicating the surveillance system, and complied with the requirements of Article 4 of Law No. 300/1970, thus regularizing the processing.

2. The legal framework of the processing carried out.

The use of surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data.

Such processing, which occurred in this case, must be carried out in compliance with the general principles contained in Article 5 of the Regulation.

The data controller must also follow the guidelines contained in the provision regarding surveillance - April 8, 2010 [1712680] (in this sense, also the FAQs regarding surveillance, published on the Authority's website), and in Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices.

The field of view of the cameras must be

limited to the only areas of its own pertinence, also potentially through the activation of a function to obscure the exceeding parts, with the perspective, however, that a minimal involvement near access points may be considered acceptable.

In exceptional cases where there are actual risk situations, the data controller may, based on a legitimate interest, to extend the surveillance of video cameras to public areas or areas open to the public, immediately adjacent to those of relevance, provided that the public space captured is only that immediately facing the entrances and windows of one's residence and that such extension is necessary and proportionate, in relation to the context, to ensure effective protection (see in this regard Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 27). Furthermore, if the video surveillance system is capable of capturing employees during work activities, the related processing of personal data is lawful only if it complies with the provisions of Article 4, Law No. 300 of May 20, 1970. In fact, the processing of personal data carried out within the employment relationship, if necessary for the purpose of managing the relationship itself (see Articles 6, paragraph 1, letter b) and c); 9, paragraph 2, letter b) of the Regulation), must be carried out in compliance with the general principles indicated by Article 5 of the Regulation, and in particular the principle of lawfulness, according to which the processing is lawful if it is in accordance with the applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation). Consistent with this approach, Article 88 of the Regulation has preserved national provisions of greater protection ("more specific rules") aimed at ensuring the protection of rights and freedoms regarding the processing of personal data of workers. The national legislator has approved, as a more specific provision, Article 114 of Legislative Decree No. 196 of June 30, 2003 (hereinafter "Code") which among the conditions for the lawfulness of processing has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The violation of the aforementioned Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation. Based on the aforementioned Article 4, Law No. 300 of 1970, video surveillance systems, if they also allow for "remote monitoring" of employees' activities, "may be used exclusively for organizational and productive needs, for workplace safety and for the protection of company assets," and the related installation must, in any case, be carried out after the conclusion of a collective agreement with the unitary trade union representation or with the company trade union representatives or, where it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization by the Labor Inspectorate. The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems. The violation of this provision is subject to criminal penalties (see Article 171 of the Code).

3. The outcome of the investigation and the sanctioning procedure. Based on the findings made by the Municipal Police, it has emerged that, with reference to the video surveillance system installed at the commercial establishment and consisting of two cameras, the external camera was found to capture a wide area of the public road on which the store is located, including the sidewalk opposite that where the establishment is located, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation. The internal camera was also found to be capable of capturing both customers and employees, and the related processing of personal data was carried out in the absence of the guarantee measures provided for under Article 4 of Law No. 300/1970, referenced by Article 114 of the Code, in relation to the presence of employees in the video-monitored premises, in violation of the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation in relation to Article 114 of the Code) and Article 88 of the Regulation.

4. Conclusions: declaration of unlawfulness of processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation. The processing of personal data carried out by the Company has therefore been found to be unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 6 of the Regulation regarding the processing of data carried out through the external camera, and

in relation to Articles 5, paragraph 1, letter a) (principle of lawfulness), 88 of the Regulation and Article 114 of the Code in relation to the internal camera. The violation established in the terms outlined in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation). The party, during the investigation, has regularized all the detected violations, providing proof with adequate documentation. Following the investigation and the established unlawfulness of the conduct as described above, an injunction order must be adopted pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative pecuniary sanction.

5. Injunction order. The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, letters a) and d), of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of data.

personal data processed by the Company through the surveillance system, which has been established to be unlawful, as outlined above, in relation to Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Articles 5, paragraph 1, letter a), 88 of the Regulation, and Article 114 of the Code.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, considering that the sanction must be "in each individual case effective, proportionate and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account: with regard to the nature and severity of the violation, it is noted that it concerns the principles applicable to the processing referred to in Article 5 of the Regulation as well as compliance with the sector regulations referred to in Article 88 of the Regulation and the responsibility related to the failure to implement the guarantee procedure provided for in Article 114 of the Code; the absence of specific previous violations by the Company related to breaches of data protection regulations; the circumstance that the Company has cooperated during the proceedings, having demonstrated to the Authority that it has complied with the guarantee procedures provided for by Law 300/1970 (so-called Workers' Statute) and removed the external camera that was monitoring areas not strictly relevant; with reference to the duration of the violation, the Company has communicated regarding the cessation of the unlawful processing.

It is also believed that the economic conditions of the offender are relevant in this case, determined with reference to the income declaration for the tax year 2022, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

Based on the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at the sum of euro 1000.00 (one thousand) for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Articles 5, paragraph 1, letter a), 88 of the Regulation, and Article 114 of the Code.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letters a) and h) and 83 of the Regulation, the unlawfulness of the processing carried out by the individual enterprise "Green Land African Market Di Owe Amenze", VAT No. 02981850353, through the use of the surveillance system installed at the commercial establishment "Green Land African Minimarket", located at Viale IV Novembre No. 19/f, Reggio Emilia, for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Articles 5, paragraph 1, letter a), 88 of the Regulation, and Article 114 of the Code;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, the individual enterprise "Green Land African Market Di Owe Amenze", VAT No. 02981850353, to pay the sum of euro 1000.00 (one thousand) as an administrative monetary sanction for the violation indicated in the reasoning;

COMMANDS

the same Company to pay the sum of euro 1000.00 (one thousand), according to the methods indicated in

the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No.

689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the right to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the sanction imposed within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website and believes that the

conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 23, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei